

24STCV26669 24STCV26669

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-28

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Case Number: 24STCV26669 Hearing Date: July 28, 2026 Dept: 512

HEARING DATE: Tues., July 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Villasenor v. J.G. Boswell COMPL. FILED: 10-11-24 FAC FILED: 03-17-25

CASE NUMBER: 24STCV26669

NOTICE: YES

PROCEEDINGS: MOTION

FOR APPROVAL OF PAGA SETTLEMENT

MOVING PARTY: Plaintiff

Marco Villasenor

RESP. PARTY: Unopposed

MOTION FOR APPROVAL OF PAGA SETTLEMENT

(Lab. Code § 2699))

TENTATIVE RULING:

Plaintiff Marco

Villasenor's Motion for Approval of PAGA Settlement is GRANTED.

Plaintiff Marco Villasenor

is ordered to give notice.

SERVICE:

☐ Proof of Service Timely

Filed (CRC, rule 3.1300) YES

☐ Correct Address (CCP §§ 1013, 1013a) YES

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) YES

OPPOSITION: None

filed as of July 23, 2026 ☐ Late ☒

None

REPLY: None

filed as of July 23, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On March 17, 2025, Plaintiff Marco Villaseñor ("Plaintiff") filed the operative First Amended Complaint ("FAC") against Defendants J.G. Boswell Company ("JGBC") and DOES 1 to 10 (collectively, "Defendants"), asserting causes of action for: (1) PAGA Penalties – Lab. Code, §§ 2698 et seq; (2) Discrimination in Violation of FEHA; (3) Retaliation in Violation of FEHA; (4) Harassment in Violation of FEHA; (5) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA; (6) Retaliation under Labor Code § 6300; and (7) Wrongful Constructive Termination in Violation of Public Policy.

On April 16, 2025, JGBC filed its Answer to the FAC.

On July 29, 2025, Plaintiff filed an Amendment to the FAC identifying Juan Mercado ("Mercado") as Doe 1.

On May 21, 2026, Plaintiff

filed a Notice of Settlement of Entire Case. Plaintiff now moves for approval of PAGA settlement.

II.

Procedural
Issues

As an initial matter, the Court notes the Motion purports to be on behalf of Plaintiff Marco Villaseñor and a “Kimely Rocha” as PAGA representatives. (See Declaration of Kimely Rocha (“Rocha”) Decl., ¶1; Not. Mot. at ii:2-7.) “PAGA standing has two requirements: the ‘plaintiff must be an “aggrieved employee”—that is, (1) ‘someone “who was employed by the alleged violator” ’ and (2) ‘ “against whom one or more of the alleged violations was committed.” ’ ” (Rodriguez v. Packers Sanitation Services LTD., LLC (2025) 109 Cal.App.5th 69, 76.) However, Ms. Rocha is not a named Plaintiff in this action. (See FAC, Title Page and ¶1, filed on 3/17/25; Compl., Title Page and ¶1, filed on 10/11/24.) None of the allegations reference Ms. Rocha at all. There is also no Amendment filed identifying Ms. Rocha as a Plaintiff in this action. Likewise, the Court does not have a Notice of Related Case on file to suggest that Ms. Rocha is possibly a named Plaintiff in separate Superior Court of Los Angeles case against JGBC.

On the other hand, the Settlement Agreement indicates that Ms. Rocha was a Plaintiff in two Kings County Superior Court actions, Cases Nos. 25CU0439 and 25CU0003 (the “Rocha Actions”), the latter being an PAGA action with overlapping claims as it pertains to this present action. (See Declaration of Navid Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 2, ¶¶1d-1e, 1g.) California case law supports permitting a court to review and determine whether to approve a PAGA settlement involving overlapping claims despite being filed in separate counties by separate PAGA representative plaintiffs. (See Shaw v. Superior Court of Contra Costa County (2022) 78 Cal.App.5th 245, 259; cf. Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 705–713 [holding a PAGA plaintiff does not have the right to intervene, move to vacate judgment entered in, or require the court to receive and consider objections to a proposed settlement in another plaintiff’s PAGA action].)

As such, this Court will review and consider the PAGA settlement and accompanying request for service award and attorney’s fees as to Ms. Rocha.

III.

Legal

Standard & Discussion

A superior court must “review and approve any settlement of any civil action filed pursuant to this part.” (Lab. Code, § 2699, subd. (s)(2).)

The Court notes that though there is no statutory or common law standard for approval of a PAGA settlement, the standard used for approval of class action settlements is instructive.

“[A] presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Dunk v. Ford Motor Co. (1996)

48 Cal.App.4th 1794, 1802.) The last factor, small percentage of objectors, is inapplicable to PAGA claims. (See Arias v.

Superior Court (2009) 46 Cal.4th 969, 984-985 [rejecting the argument that representative actions under PAGA violate the due process rights of “nonparty aggrieved employees who are not given notice of, and an opportunity to be heard”].) Additional factors that are useful to consider include the strength of a plaintiff’s case, the risk, expense, complexity and likely duration of further litigation, the amount offered in settlement, the extent of discovery completed, and the experience and views of counsel. (See Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128.)

Here, Plaintiff’s counsel states that,

“[o]n July 17, 2025 the Parties participated in a mediation with Scott Radovich, Esq., a mediator in the field of employment law and wage-and-hour class actions. Although the matter did not settle at mediation, the Parties continued their settlement discussions, and on December 15, 2025, the Parties agreed to a settlement in the amount of \$67,500, subject to the Parties’ successful negotiation of remaining non-monetary terms. After taking into account the sharply disputed factual and legal issues involved in this litigation, the risks associated with further prosecution, the benefits to be received pursuant to the compromise and settlement of the PAGA representative penalty claims, the Parties determined that there were benefits associated with settling the matter and both parties agreed to resolve the matter.”

(Declaration of Navid Barahmand (“Barahmand Decl.”), ¶22.) Thereafter, on May

26, 2026, the parties entered into the fully execute Settlement Agreement. (Id., ¶¶2, 23, Ex. 1.)

The Court finds that the Settlement Agreement appears to have been reached through arm's-length negotiations consisting of informal exchange of information while mediation was pending, attending mediation, and further post-mediation settlement discussions. (Barahmand Decl., ¶¶20-23.) This informal discovery exchange included production of relevant policy-related documents, time records, payroll records, and the "aggrieved employees" lost with start and end dates, pay rates, and job descriptions. (Id.)

The Court further finds that Plaintiff and Ms. Rocha were represented by competent counsel with five to twenty years of experience litigating wage and hour PAGA actions in California. (Barahmand Decl., ¶5; Declaration of Elliot J. Siegel ("Siegel Decl."), ¶3; Declaration of Roman Otkupman ("Otkupman Decl."), ¶7; Declaration of Nidah Farishta ("Farishta Decl."), ¶4.) Although there is no evidence presented attesting to the competence and experience of defense counsel, Sagaser, Watkins & Wieland PC, there is also no evidence of the contrary. Thus, the proposed Settlement Agreement is entitled to a presumption of fairness.

A. Compliance with Labor Code Requirements

"[C]ivil penalties recovered by aggrieved employees shall be distributed as follows: 65 percent to the Labor and Workforce Development Agency for enforcement of labor laws, including the administration of this part, and for education of employers and employees about their rights and responsibilities under this code, to be continuously appropriated to supplement and not supplant the funding to the agency for those purposes; and 35 percent to the aggrieved employees." (Lab. Code, § 2699, subd. (m).) This amendment to Labor Code Section 2699, however, "shall not apply to a civil action with respect to which the notice required by subparagraph (A) of paragraph (1) of subdivision (a), paragraph (1) of subdivision (b), or subparagraph (A) of paragraph (1) of subdivision (c) of Section 2699.3 was filed before June 19, 2024." (Lab. Code, § 2699, subd. (v)(2).)

Plaintiff's PAGA notice was sent to

the Labor and Workforce Development Agency ("LWDA") on August 6, 2024. (Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 1, ¶1c.) Similarly, Ms. Rocha sent her PAGA notice to LWDA on August 15, 2024 and an amended PAGA notice on October 28, 2024. (Id. at p. 1, ¶¶1d-1e; Otkupman Decl., ¶12, Ex. 1.) Therefore, the 65% to the Labor and Workforce Development Agency and 35% to the aggrieved employee distribution for civil penalties applies in this instant case and not the former 75/25 split.

The proposed Settlement Agreement is for \$67,500.00, inclusive of payments to the LWDA and Aggrieved Employees, attorneys' fees and costs, and settlement administration costs. (Barahmand Decl., ¶67.) Barahmand Law Group, King & Siegel LLP, and Otkupman Law Firm will be paid \$22,500.00 collectively for attorneys' fees, which consists of \$7,500.00 for each law firm. (Barahmand Decl., ¶80; Siegel Decl., ¶10; Otkupman Decl., ¶19, Farishta Decl., ¶9.) Likewise, collectively, the law firms will be paid \$20,233.92 in litigation costs. (Barahmand Decl., ¶94, Ex. 7; Siegel Decl., ¶33, Ex. 4; Otkupman Decl., ¶22, Ex. 3.) The settlement administrator ILYM Group, Inc. will be paid \$5,450.00. (Barahmand Decl., ¶2, Ex. 2 – Prop. Order at ¶10.) Moreover, Plaintiff and Mr. Rocha seek a representative enhancement award in the amount of \$5,000.00 each. (Declaration of Marco Villasenor ("Villasenor Decl."), ¶20; Declaration of Kimley Rocha ("Rocha Decl."), ¶16.) After deducting these amounts, a net settlement amount of \$9,316.08 will be disbursed to the LWDA and the Aggrieved Employees for the period of 8/6/23 through 10/11/25 ("PAGA Period"). Specifically, 65% of \$6,055.45 will be paid to LWDA, and 35% or \$3,260.63 will be paid to the Aggrieved Employees.

Thus, the Court finds that the proposed Settlement Agreement terms conform with the requirements set forth Labor Code Section 2699, subdivision (m).

Additional factors that are useful to consider in determining whether to approve the settlement include the strength of a plaintiff's case, the risk, expense, complexity and likely duration of further litigation, the amount offered in settlement, the extent of discovery completed, and the experience and views of counsel. (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128.)²² For example, each of Plaintiff's and Ms. Rocha's counsels attest to the risk in moving forward with litigating their claims due to the merit-based defenses raised by JGBC, which could significantly cap recovery for the Aggrieved Employees. (Barahmand Decl., ¶¶40-60; Siegel Decl., ¶23; Otkupman Decl., ¶15-16.)

Therefore, Plaintiff and Ms. Rocha have demonstrated that the proposed Settlement Agreement merits approval.

B. LWDA

“The proposed settlement shall be submitted to the [Labor and Workforce Development Agency] at the same time that it is submitted to the court.” (Lab. Code § 2699, subd.

(l)(2).) Plaintiff’s counsel, Mr. Barahmand attests to submitting a copy of the proposed settlement and present motion to the LWDA on June 9, 2026. (Barahmand Decl., ¶¶3-4, Exs. 3-4.)

C. Release of Claims

If the Court approves the PAGA settlement, the Aggrieved Employees will release the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, during the PAGA Period, based on the facts stated in the PAGA Notices, as well as those stated in the subsequent PAGA Actions, including, but not limited to, claims for violations of Labor Code Sections

201, 202, 203, 204, 210, 212(a)(2), 213, 226(a), 226.3, 226.7, 510, 512(a), 551, 552, 558, 1174(d), 1194, 1194.2, 1197, 1197.1, 1198, 1401, 2800, 2802, and Industrial Welfare Commission Wage Orders, including inter alia, Wage Orders 4-2001, 5-2001, and 15-2001. (Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 1, ¶¶1d, 1f; at p. 8, ¶8a.) This release is limited to claims that arise from or relate to allegations in the pleadings in this action and the Rocha Actions. Therefore, the scope of this release is permissible.¿

D. Attorney’s Fees, Costs, and Settlement Administration

A prevailing employee is entitled to an award of reasonable attorney fees and costs incurred in the action. (Lab. Code, § 2699, subd. (g)(1).) California Rules of Court, rule 3.769, subdivision (b) requires that “[a]ny agreement... with respect to the payment of attorney’s fees or the submission of an application for the approval of attorney’s fees must be set forth in full in any application for approval of

the dismissal or settlement of an action that has been certified as a class action.” Despite any agreement by the parties to the contrary, “the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Co. (2004) 118 Cal.App.4th 123, 128.)

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.” (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Plaintiff and Ms. Rocha’s counsels request attorney fees using the percentage method.

The proposed Settlement Agreement expressly provides: “Attorneys’ fees in the amount of Thirty-Five (35%) of the Total Settlement Amount, which is Twenty-Three Thousand Six-Hundred Twenty-Five Dollars and Zero Cents (\$23,625.00) if the Gross Settlement Amount remains \$67,500.00, and reimbursement of litigation costs and expenses in the amount of up to \$25,000 (collectively, “Attorneys’ Fees and Costs”) to Plaintiffs’ Counsel, which Defendant will not contest. The amount of Attorneys’ Fees and Costs is subject to Court approval. Defendant and Released Parties shall have no liability arising from Attorneys’ Fees and Costs other than as described in this paragraph.” (Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 3, ¶3a(2).) As discussed above, Barahmand Law Group, King & Siegel LLP, and Otkupman Law Firm indicate that they seek \$7,500.00 each in attorneys’ fees, i.e., \$22,500.00 jointly. (Barahmand Decl., ¶80; Siegel Decl., ¶10; Otkupman Decl., ¶19, Farishta Decl., ¶9.)

Similarly, Mr. Barahmand seeks \$9,732.28 in litigation costs; Mr. Siegel seeks \$7,687.75 in litigation costs; and Mr. Otkupman seeks \$2,813.89. (Barahmand Decl., ¶94, Ex. 7; Siegel Decl., ¶33, Ex. 4; Otkupman Decl., ¶22, Ex. 3.) Collectively, the law firms seek \$20,233.92 in litigation costs. (Id.)

Additionally, Mr. Barahmand attests to expending approximately 56.0 hours working on this case at an hourly rate of \$425.00; Mr. Siegel avers to expending 37.5 hours working on this matter at an hourly rate of \$900.00 and his paralegal expended 11.0 hours at an hourly rate of \$250.00; Mr. Otkupman avers to expending approximately 47.4 hours on Ms. Rocha’s case at an hourly rate of \$950.00; and Ms. Farishta states that she expended 9.4 hours

on Ms. Rocha's case at an hourly rate of \$600.00. (Barahmand Decl., ¶187; Siegel Decl., ¶17; Otkupman Decl., ¶¶20-21; Farishta Decl., ¶9.)

Therefore, the requested fees and costs are supported by the attestations and less than what is provided for in the proposed Settlement Agreement. Accordingly, the Court finds that requested fees and costs pursuant to the proposed Settlement Agreement are reasonable.

Lastly, the proposed Settlement Agreement provides for settlement administrator costs in the amount of \$7,000.00 to ILYM Group, Inc. (Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 3, ¶3a(3).) The parties asks the Court to approve \$5,450.00, which is less than the amount expressly provided for in the proposed Settlement Agreement. The Court thus finds the requested amount to be reasonable.

E. Representative Enhancement Award

Incentive awards are used as a common practice in PAGA actions, a practice derived from class action procedures. However, such incentive awards are neither mentioned nor expressly prohibited by the PAGA statute.

In class actions, a service (or incentive) fee award to a named class representative must be supported by evidence that quantifies the time and effort expended by the individual and a reasoned explanation of financial or other risks undertaken by the class representative. See *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 806-807; see also *Cellphone Termination Cases* (2010) 186 Cal.App.4th 1380, 1394-1395 ["Criteria courts may consider in determining whether to make an incentive award include: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. (Citations.)"].

If the amount of an incentive payment is unjustified, it can be reduced. (See *Uribe v. Crown Building*

Maintenance Co. (2021) 70 Cal.App.5th 986, 995, 998 [noting trial court reduced request for \$10,000 enhancement award in a \$370,000 PAGA settlement to \$5,000].). Further, “an action to recover civil penalties is fundamentally a law enforcement action designed to protect the public and not to benefit private parties.” (Iskanian v. CLS Transportation Los Angeles, LLC (2014) 59 Cal.4th 348, 381.)

Plaintiff and Ms. Rocha each request \$5,000.00 as an enhancement award for their efforts in this case and the Rocha Actions. (Villasenor Decl., ¶¶20, 25-26; Rocha Decl., ¶¶12-13, 16.) Specifically, Plaintiff attests to expending 14.5 hours, “(a) including providing factual background for the PAGA Complaint (1.5 hours); (b) reviewing the relevant documents and draft PAGA Complaint (1 hours); (c) emailing, texting, and participating in phone calls with my Counsel to discuss litigation, settlement strategy, and mediation (2.5 hours); (d) remaining on-call and available during the mediation and negotiation of settlement (8 hours); (e) reviewing the settlement documents (1 hours); and (f) providing this declaration (.5 hours).” (Villasenor Decl., ¶20.) Similarly, Ms. Rocha avers to expending 30.0 to 35.0 hours, “(a) regularly conferring with my attorneys, both before and after the filing of the lawsuit, to discuss the status of the case, offer my input on JGBC’s policies and practices, provide witness information, assist in gathering evidence, and discuss settlement options; and (b) assisting in preparing for mediation by answering questions about how JGBC’s policies and practices impacted me and my coworkers, making myself available during mediation proceedings, approving the tentative settlement, and reviewing and approving the final settlement agreement.” (Rocha Decl., ¶¶12-13.)

Furthermore, Plaintiff and Ms. Rocha both release additional claims beyond those also being released by Aggrieved Employees as it pertains to their individual claims. (Barahmand Decl., ¶2, Ex. 1 – Settlement Agreement at p. 7, ¶8b.) However, Plaintiff admits that he is receiving an individual settlement of \$75,000.00. (Villasenor Decl., ¶¶25-26.) Although Ms. Rocha makes no indication that she will be receiving an individual settlement outside of her portion of the amount to be paid to the Aggrieved Employees, the proposed Settlement Agreement suggests that she will be paid separately for an individual settlement. Thus, awarding an additional \$5,000.00 each for a total of \$10,000.00 as a representative enhancement award is unjustified. The Court will reduce the enhancement to \$1,000 each for a total of \$2,000.

IV.

Conclusion
& Order

Based on the foregoing, Plaintiff Marco Villasenor's Motion for Approval of Private Attorney General Act ("PAGA") Settlement is GRANTED.

The settlement is to be disbursed as follows: (1) \$22,500.00 in attorneys' fees; (2) \$20,233.92 in litigation costs; (3) \$5,450.00 in settlement administration costs; (4) \$1,000 each for a representative enhancement award; and (5) \$17,316.08 to be paid to the LWDA and Aggrieved Employees in accordance with Labor Code Section 2699, subdivision (m).

The Court orders Plaintiff to file and serve a proposed judgment consistent with this order within 10 days of this order.

Plaintiff Marco Villasenor is ordered to give notice.